

Irshad — demand notice relegated to para 6.8 objection with stay

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. 17894 of 2022 · **Writ disposed; liberty to file para 6.8 objection; coercive action stayed eight weeks.**

HEADNOTE

A consumer's writ to quash a Rs. 2,32,757 demand notice was disposed without merits. On the licensee's statement that an objection could be decided time-bound, the High Court granted liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, and stayed coercive recovery for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Irshad sought certiorari to quash demand notice No. 514 dated 13 July 2021 of the Executive Engineer, Vidyut Vitran Khand 3rd, Moradabad, claiming Rs. 2,32,757. On the first listing none appeared for him and the matter was adjourned as fresh. When heard on 5 August 2022, counsel for the distribution licensee stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand notice; stay of coercive recovery

HOLDING

Without expressing any opinion on merits, the writ was disposed by granting liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand stands stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against a demand notice disposed by directing a para 6.8 objection, time-bound disposal after hearing, and stay of coercive recovery in the meantime. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 Court declined to examine the demand on merits and relegated the consumer to the statutory para 6.8 objection before the licensee. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF DEMAND NOTICE NO. 514 DATED 13.7.2021 FOR RS. 2,32,757

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4